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|   |                                                                            | <p>12. Section 9 of the notice should state that the settlement administrator will post the judgment on the case website for at least 180 days. 3/5/26 Order (ROA 104) No. 39.</p> <p>13. The method of submitting the exclusion form stated on the form is inconsistent with the settlement agreement and should be revised.</p> <p>14. The method of submitting objection form stated on the form is inconsistent with the settlement agreement and should be revised.</p> <p>15. As stated in the March 5, 2026 order (ROA 104, No. 40), a certified copy of the translated notice should be attached as exhibit to the proposed order.</p> <p><u>As to the proposed order:</u></p> <p>16. The proposed order should be revised consistent with the above.</p> <p>17. The parties did not submit a separate copy of the proposed order, but rather submitted the proposed order as an exhibit to the Sani Declaration (ROA 116). The proposed order should be submitted as a separate document. The settlement agreement, any amendment(s) thereto, and the notice packet (in all languages) should be attached to the proposed order as exhibits.</p> <p>The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>December 3, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents.</p> <p>Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service.</p> <p><b>No earlier hearing date is available for this motion.</b></p> |
| 7 | <p>Frye v. Progressive Casualty Insurance Company</p> <p>2025-01477541</p> | Off calendar.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 8 | Malecki v. Frisbie Management, Inc.                                        | <u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |

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|  | 2024-01423675 | <p>The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of an \$1,850,000 class action and PAGA settlement. The court has the following questions and comments:</p> <p><u>As to the settlement:</u></p> <ol style="list-style-type: none"> <li>1. The parties should state the estimated average, high and low individual class and average, high and low individual PAGA payments.</li> <li>2. Plaintiff should state plaintiff's total compensation anticipated to be received (including for any individual claims and excluding any enhancement award). Plaintiff should also state in a declaration filed with the court the estimated number of hours she has spent working on the case.</li> <li>3. A copy of the LWDA notice letter should be submitted to the court.</li> <li>4. The word "Actions" in paragraph 1.31 of the settlement agreement should be replaced with "in Case No. 2024-01423675."</li> <li>5. The court prefers a 60-day period for the submission of exclusions, objections and disputes. Are there special circumstances here that warrant the shorter period the parties propose? See, e.g., Settlement Agreement ¶¶ 1.44, 7.4.4, 7.5.1, 7.6.</li> <li>6. The "Response Deadline" provision in paragraph 1.44 should include disputes.</li> <li>7. The parties (plaintiff and defendant) should advise, in declarations filed with the court, whether, after making reasonable inquiry and since the time the settlement agreement was signed, they have become aware of any class, representative or other collective action in any court that asserts claims similar to those asserted in this action and, if any such actions are known to exist, the declarations shall also state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case.</li> <li>8. The parties and their counsel must state in declarations filed with the court whether they have an interest in the cy pres recipient, including its governance. The parties should also provide a declaration demonstrating the propriety of the cy pres recipient and of a distribution under Civil Procedure Code section 384, and the parties should explain why a cy pres distribution fulfills the purposes of the lawsuit or is otherwise appropriate.</li> <li>9. The phrase "Aggrieved Employees" should be inserted in the first sentence of paragraph 5 after "Class Members" and before "and Class Counsel."</li> </ol> |
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